

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Theo Kaufman	Team: Squad #11	CCRB Case #: 202206693	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/24/2022 1:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/24/2024	Precinct: 70		
Date/Time CV Reported Wed, 10/05/2022 2:29 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/05/2022 2:29 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Jonathan Gomez	22992	972392	070 PCT
2. PO Edwin Campos	06176	964961	070 PCT
3. SGT Artur Bernadskiy	00878	940899	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Wardah Iqbal	02622	963578	070 PCT
2. PO Kenny Lin	18701	971531	070 PCT
3. SGT Derek Chow	02797	963822	070 PCT
4. PO Eduardo Santiago	17539	966838	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Edwin Campos	Abuse: Police Officer Edwin Campos failed to provide § 87(2)(b) with a business card.	A . Substantiated
B . PO Edwin Campos	Abuse: Police Officer Edwin Campos forcibly removed § 87(2)(b) to the hospital.	B . Within NYPD Guidelines
C . PO Jonathan Gomez	Abuse: Police Officer Jonathan Gomez forcibly removed § 87(2)(b) to the hospital.	C . Within NYPD Guidelines
D . SGT Artur Bernadskiy	Abuse: Sergeant Artur Bernadskiy refused to provide his name to § 87(2)(b)	D . Substantiated

Case Summary

On October 5, 2022, § 87(2)(b) filed this complaint with the CCRB via phone. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

On September 24, 2022, at approximately 1:15pm, PO Edwin Campos, PO Jonathan Gomez, and other officers of the 70th Precinct responded to an assault in progress involving an emotionally disturbed person (EDP) at § 87(2)(b) in Brooklyn. As the officers investigated the incident, § 87(2)(b) asked PO Campos for his business card which he did not provide (**Allegation A: Abuse of Authority: Substantiated**). Once EMS responded to the location, they decided to remove § 87(2)(b) to the hospital. § 87(2)(b) refused to go with EMS. PO Campos and PO Gomez assisted EMS with her removal to § 87(2)(b) (**Allegations B and C: Abuse of Authority: Within NYPD Guidelines**). § 87(2)(b) asked Sgt. Arthur Bernadskiy for his name, which he did not provide (**Allegation C: Abuse of Authority: Substantiated**).

No arrests or summons resulted from this incident.

BWC was obtained (**BR 01, 02, 11, 12**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Edwin Campos failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) and her sister called 911 following a domestic dispute. PO Gomez, PO Iqbal, and PO Campos responded to the radio run. During her interaction with the officers, § 87(2)(b) asked PO Campos for his business card. PO Campos stated that he did not have a business card and pointed to his name and shield number (**BR 03**).

At timestamp 12:00 of PO Campos' BWC, § 87(2)(b) asks for PO Campos' "ID card". He tells her that his name and shield is "right here". § 87(2)(b) asks again if he has a card, and PO Campos says that he is not required to give her a card. § 87(2)(b) tells him that he is required to, and PO Campos again says that he is not. He repeats that he has his name and shield "right here". At 12:30, § 87(2)(b) asks for PO Gomez's business card, and he takes one out, writes on it, and provides it to § 87(2)(b). At 12:49, PO Gomez tells PO Campos that he is supposed to carry business cards. PO Campos then responds that he does not have a business card (**BR 01**).

At timestamp 12:40 of PO Gomez's BWC, § 87(2)(b) asks him, PO Wardah Iqbal, and PO Campos for business cards. PO Gomez and PO Iqbal provide their cards to § 87(2)(b) (**BR 02**).

The investigation interviewed PO Campos twice. In his first interview, PO Campos only testified that he did not have any business cards. When interviewed a second time, PO Campos noted that he told § 87(2)(b) that he was not required to provide her with a card. He testified that he meant that he did not have any, and he pointed her to his name and shield number to provide his information. He was not equipped with business cards as he had run out of them that day, and the remainder of his business cards were at the stationhouse. PO Gomez wrote down PO Campos' information on the business card that PO Gomez provided to § 87(2)(b) upon her request of his own business card (**BR 04, 05**).

Members of the service are required to provide business cards, as appropriate, at the request of members of the public. If the supply of right to know act business cards becomes depleted,

members of the service must allow the members of the public ample time to write down identification information, including their name, rank, shield number, and command.
Administrative Guide 304-11 (BR 06).

BWC shows that PO Campos told § 87(2)(b) that he did not have to provide her with a business card and did not explain to her why he could not provide her with a business card. PO Campos testified that he had run out of business cards on that day and did not have any general business cards. § 87(2)(g)

§ 87(2)(b) it is recommended that **allegation A** be closed as **Substantiated**.

Allegation (B) Abuse of Authority: Police Officer Edwin Campos forcibly removed § 87(2)(b) to the hospital.

Allegation (C) Abuse of Authority: Police Officer Jonathan Gomez forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) explained that after an ambulance arrived, and EMTs checked her vitals, they asked if she needed to go to the hospital. § 87(2)(b) refused to go to the hospital with the EMTs and said that she would go later in the day. § 87(2)(b) felt that no one was paying attention to her concerns and went to her room to charge her phone. Officers followed § 87(2)(b) into her room. They told her that she needed to come with them to the hospital, and she could either go willingly or be taken by force. PO Gomez and PO Campos handcuffed § 87(2)(b). § 87(2)(b) tried to resist at first, but PO Gomez and PO Campos were able to place her in handcuffs. § 87(2)(b) was escorted into an ambulance and taken to § 87(2)(b).
§ 87(2)(b) (BR 03).

At timestamp 14:30 of PO Campos' BWC, § 87(2)(b) speaks with EMS. At 18:17, § 87(2)(b) tells a female EMT who is interviewing her in the kitchen, "I don't want this bitch (referring to her sister) in my house because I would kill her in self-defense." At 19:40, § 87(2)(b) is seen explaining to a male EMT that § 87(2)(b) suffers from anxiety. At 20:18, PO Campos asks if they should take § 87(2)(b) to the hospital, and the male EMT says "yep". PO Campos walks into the room where § 87(2)(b) is speaking with EMS. At 21:23, as § 87(2)(b) is seen taking pictures of the officers who are standing in the kitchen as she speaks with the female EMT, the latter is seen whispering to PO Campos: "she needs to go." At 23:46, § 87(2)(b) stands up and walks back towards her bedroom. PO Campos tells § 87(2)(b) that she has to go to the hospital. When § 87(2)(b) refuses to comply, PO Campos tells § 87(2)(b) that she is either going to the hospital voluntarily or in handcuffs. § 87(2)(b) refuses to go to the hospital. At 28:17, PO Campos, PO Santiago, and PO Gomez, place § 87(2)(b) in handcuffs. At 29:59, the officers escort her to the ambulance (BR 01).

PO Campos testified that EMS had been dispatched to the 911 call along with the officers. On scene, the EMTs decided that § 87(2)(b) needed to be transported to the hospital. Officers explained to § 87(2)(b) that she had to go to the hospital, but she walked away and refused to go to the hospital. PO Campos and PO Gomez placed § 87(2)(b) in handcuffs and escorted her to the ambulance (BR 04, 05).

§ 87(2)(g)

EVENT Chronology § 87(2)(b) noted the report of a dispute between a female caller, her

sister, and an additional person. The EVENT type was indicated as an assault in progress with a notation that it involves a violent emotionally disturbed person. At 1:12pm, the sister informed 911 that § 87(2)(b) suffered from § 87(2)(b) (BR 07).

Aided report #§ 87(2)(b) notes that § 87(2)(b)'s sister said that § 87(2)(b) was suffering from § 87(2)(b). It also notes that § 87(2)(b) had verbally threatened others during this incident before being removed to § 87(2)(b) (BR 08).

Uniformed members of the service concerned shall cooperate with ambulance/hospital personnel in every reasonable manner. Patrol Guide procedure 216-01 (BR 09). Restraining equipment including handcuffs may be used if EDP is violent, resists, or upon direction of a physician examiner. Patrol Guide procedure 221-13 (BR 10).

§ 87(2)(g)
Therefore, it is recommended that **allegation B** be closed as **Within NYPD Guidelines**.

Allegation (D) Abuse of Authority: Sergeant Artur Bernadskiy refused to provide his name to

§ 87(2)(b)
At timestamp 09:12 of Sgt. Bernadskiy's BWC footage, § 87(2)(b) tries to get Sgt. Bernadskiy's attention, and asks, "Sergeant, what's your name?" § 87(2)(b) is sitting in the back of the ambulance, and Sgt. Bernadskiy is standing a few feet away from the back door of the ambulance. § 87(2)(b) is audible from the recording, and there is no additional loud noise on scene. Sgt. Bernadskiy does not reply and walks away after a few seconds (BR 11).

Between the timestamp 09:12 and 09:25 of PO Chow's BWC, Sgt. Bernadskiy is seen looking away from § 87(2)(b) and towards the street. Sgt. Bernadskiy is not speaking with anybody else. The recording does not indicate any additional loud noise. § 87(2)(b) tries to get his attention multiple times, but he does not acknowledge her once, and after 09:25, he turns away (BR 12).

§ 87(2)(b) did not allege that Sgt. Bernadskiy refused to provide her with his name (BR 03).

Sgt. Bernadskiy testified that he was outside of the building while § 87(2)(b) was being placed in the ambulance. He was paying attention to his surroundings and did not have any conversation with § 87(2)(b). After viewing his BWC footage, he noticed that § 87(2)(b) tried to get his attention and asked for his name, but at the time he was not paying attention to her, and her request did not register in his brain (BR 13).

A member of the service must courteously and clearly state their rank, name, shield number and command, or otherwise provide them, to anyone who requests that they do so. Administrative Guide 304-11 (BR 06).

§ 87(2)(b) can be heard on BWC requesting Sgt. Bernadskiy's name, Sgt. Bernadskiy himself testified that his attention was focused on his surroundings at the time and that he did not realize she had asked for his name. PO Chow's BWC shows that Sgt. Bernadskiy was not looking at § 87(2)(b) when she asked for his name and was looking away to his left. § 87(2)(b)'s request for his name was audible from both PO Chow's and Sgt. Bernadskiy's BWC videos. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegation C** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one additional CCRB complaint and has been named as a victim in one additional allegation (**BR 14**):
 - § 87(2)(b)
- Sgt. Bernadskiy has been a member-of-service for 17 years and has been a subject in one additional CCRB complaints and one additional allegation, which has not been substantiated.
- PO Campos has been a member of service for five years and has been a subject in four additional CCRB complaints and seven additional allegations, of which one was substantiated:
 - 202003538 involved substantiated allegations of Abuse of Authority. The Board recommended command discipline B and the NYPD imposed no disciplinary action.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 1, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**BR 15**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 11

Investigator:	<u>Theo Kaufman</u>	<u>Investigator Theo Kaufman</u>	<u>11/17/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Edwin Pena</u>	<u>IM Edwin Pena</u>	<u>11/17/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date